DEPARTMENTAL GENERAL ORDER

OLIVETTE POLICE DEPARTMENT
OFFICE OF THE CHIEF OF POLICE

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ADMINISTRATION

I. POLITICAL ACTIVITY:

A. To serve the best interests of the employees, taxpayers, and the City of Olivette it is the policy of the Olivette Police Department to maintain a standard of professional conduct, which includes prohibiting potentially disputatious conduct without infringing upon employees' rights to exercise their freedom of speech. The purpose of this policy is to protect employees from political pressure to support any political party, person or cause and to protect the interest of the public whom all employees serve without regard to their political opinions or affiliations.

B. No employee of the Olivette Police Department shall campaign for or publicly support the candidacy of any individual for the office of City Council.

C. No employee, while on duty or while in uniform that identifies the individual as Olivette Police personnel shall:

1. Canvass on behalf of any candidate, political party, or political issue;

2. Display a political picture, sticker, badge or button;

3. Attend a political rally, fund raising function or other political gathering;

4. Circulate or sign a political petition;

5. Serve as an election judge or clerk.

D. No employee shall place, or allow to remain, upon a City vehicle any political picture, sticker, badge or button.

E. Nothing in this policy shall be construed to restrict an employee's freedom to express an opinion or exercise the right to vote while off duty.

F. No Olivette Police personnel shall use City equipment, personnel, facilities or resources to promote or help promote any civic, social, business, or political candidate, or any non-city purpose without the express written consent of the Chief of Police.

II. GENERAL GUIDELINES REGARDING DEMEANOR WHILE ON DUTY AND EMPLOYEE'S SPEECH, RIGHTS AND OBLIGATIONS

A. Olivette Police personnel shall be courteous to the public and other personnel. Personnel shall be tactful, control their tempers, exercise patience and discretion and shall not engage in any argumentative discussions even in the face of provocation. In the performance of their duties, personnel shall maintain a neutral and detached attitude, without indicating disinterest or that a matter is petty or insignificant. Personnel shall not use coarse, violent, profane or insulting language or gestures and shall not express prejudices concerning race, national origin, creed, color, disability, age, religion, gender, sexual orientation or gender identity/expression or socio-economic status.

B. Olivette Police personnel shall obtain information in an official and courteous manner and act upon it in a proper and judicious manner within the scope of their duties and consistent with established Departmental procedures whenever any person applies for assistance or advice, or files complaints or reports, either by telephone or in person.

C. Olivette Police personnel shall avoid regular continuous associations or dealings with persons whom they know are under active criminal investigation or indictment, or who have a reputation in the community or the Department for present involvement in felonies or criminal behavior, except as necessary in the performance of official duties, or where unavoidable because of other personal relationships.

D. Olivette Police personnel shall not publicly criticize or ridicule the Department, its policies or other personnel in a manner which is defamatory, obscene, unlawful, undermines the effectiveness of the Department, interferes with the maintenance of discipline, or is made with

reckless disregard for the truth. Employees shall not hold themselves out as representing the Department without prior authority.

E. Olivette Police personnel shall have telephones and shall report any change of phone number or home address to the Deputy Chief within two working days.

Officers will return phone calls from all Olivette supervisors as soon as possible up to a maximum of 6 hours.

F. Olivette Police Personnel shall not knowingly interfere with investigations, assigned tasks, or duty assignments of others and shall not directly or indirectly, by threat or bribe, attempt to secure the withdrawal or abandonment of a complaint or charges.

G. Olivette Police personnel shall submit all necessary reports on time in accordance with established Departmental procedures. Reports shall be truthful and complete. Personnel shall not knowingly enter or cause to be entered, any inaccurate, false or improper information.

H. Olivette Police personnel shall utilize Department equipment only for its intended purpose in accordance with established Department procedures and shall not abuse, damage or lose Department equipment. All Department-issued equipment shall be maintained in proper order. Loss or intentional damage to Department property shall be the responsibility of the employee and the employee shall be required to reimburse the Department in the event of negligent loss or intentional damage.

I. Olivette Police personnel shall truthfully answer all questions specifically directed and narrowly related to the scope of employment and operation of the Department, which may be asked of them.

J. Olivette Police personnel shall possess a valid state operator's license, shall operate official vehicles in a careful and prudent manner and shall obey all laws and Department orders.

III. GENERAL STATEMENT REGARDING EMPLOYEE SPEECH RIGHTS AND OBLIGATIONS

Employees are encouraged to express their views in a reasonable and productive manner. Law enforcement employees are entrusted with special responsibilities and they must conduct themselves in a professional manner at all times and may not act in a manner which brings the Department into disrepute, reflects discredit upon the office or employee as a member of the Department, or that which impairs the operation of efficiency of the Department. This employee speech policy is designated to provide guidelines to ensure that employee speech does not unnecessarily harm legitimate law enforcement interests. The specific restrictions on employee speech set forth below are necessary to protect the integrity of the Department and ensure that efficient and effective police services are delivered to the community.

IV. CERTAIN SPEECH UNPROTECTED AS A MATTER OF LAW

Employees are subject to disciplinary action up to and including discharge for speech consisting of libel, slander, perjury, incitement to riot, or knowingly making false statements regarding Departmental operations or personnel. Similarly, employees shall not publicly criticize Departmental operations, policies, or personnel by speech, writing, or expression in any other manner when such speech is factually inaccurate or is made with reckless disregard of its truth.

V. OFF-DUTY SPEECH UNRELATED TO EMPLOYMENT

When employees are off duty and out of uniform, they enjoy the same speech rights as other citizens, except for restrictions on partisan political speech imposed by law and for specific restrictions imposed by Departmental policy.

VI. CONFIDENTIAL INFORMATIION AND PUBLICATION REVIEW OBLIGATION

A. All employees are prohibited from disclosing or divulging any "confidential" information obtained by virtue of their employment to persons not specifically authorized to receive such information.

B. “Confidential" information includes investigative, informant, internal affairs, personnel files, and any other information relating to Departmental operations or personnel that a reasonable person would consider “confidential.” Uncertainty over whether information is “confidential” should be resolved by consultation with the Chief of Police.

C. Employees are required to submit to their supervisor for review any writing intended for publication relating to law enforcement. This publication review in no way serves to censor an employee’s writing, rather, it is designed to prevent the improper disclosure of confidential information and to alert employees to the possible consequences of their intended publication.

VII. WHISTLE BLOWER PROTECTION AND PROCEDURES

A. Employees are required to report immediately any evidence of another employee’s criminal wrongdoing to the Chief of Police. In the event the Chief is suspected of criminal wrongdoing or of covering up another employee’s wrongdoing, employees are required to report such information directly to the City Manager.

B. If the employee is not satisfied with the City Manager’s response, the employee should report the information to the appropriate prosecuting attorney.

C. Employees are subject to termination for any activity that interferes with or hinders the successful prosecution of an employee’s criminal misconduct. **Employees are not subject to retaliatory discipline action for reporting under this rule. However, employees are subject to discipline for making frivolous reports.**

VIII. PUBLIC APPEARANCES REPRESENTING THE DEPARTMENT

Employees must receive the prior permission of the Chief of Police before making any public appearance officially representing the Department or one that gives the impression, they are representing the Department. Officers in Departmental uniform, whether on or off duty, shall not make any speech or presentation to any civic club, religious gathering, private or public organization, or any other organized gathering without the prior approval of the Chief of Police.

IX. ON DUTY SPEECH RESTRICTIONS

A. The need for discipline and harmony in a law enforcement organization necessitates additional restrictions on employee speech when employees are on duty. Employees on duty or in uniform should refrain from using indecent or profane language or engaging in potentially disputatious behavior. Employees shall be courteous to citizens, maintain command of their temper, and refrain from coarse, boisterous, or insolent language. Upon request, employees are required to provide citizens their name and DSN.

B. Employees shall treat supervisors, subordinates, and associates in a respectful manner. Employees are prohibited from making personal attacks that ridicule, belittle, or defame another member of the Department. No employee shall use epithets or terms that tend to denigrate a race, national origin, creed, color, disability, age, religion, gender, sexual orientation or gender identity/expression or socio-economic status.

C. Management-level employees have a duty of loyalty to support and defend management policies when addressing non-management level employees or subordinates. The failure or deliberate refusal to obey a lawful order or command of a superior constitutes insubordination and is grounds for **immediate termination**. Employees must obtain permission from the Chief of Police to circulate any petitions, questionnaires, or other material relating to employee grievances or conditions of employment while on duty or on Department property.

X. PUBLIC CRITICISM

A. Public criticism of Departmental operations or personnel can undermine the public's confidence in law enforcement and adversely affect morale. Accordingly, employees are required to express either verbally or in writing any work-related criticism to their immediate supervisor prior to expressing that criticism publicly.

B. Constructive criticism is encouraged, and employees will not be disciplined for reasonably expressing their criticism to their supervisors. While it is not possible to list all the factors that will be evaluated in deciding whether an employee should be disciplined for public criticism, the presence of one or more of the following factors will be considered as grounds for **disciplinary action;**

1. The employee personally criticized another person in a way that undermined discipline or working relationships.

2. The employee failed to use the chain-of command grievance procedures prior to engaging in public criticism.

3. The speech related only to a personal internal grievance of the employee and did not concern a matter of significant public interest, such as serious mismanagement, a gross waste of funds, the abuse of authority, or a specific and substantial danger to public health.

4. The speech was delivered in an intemperate, offensive, or unprofessional manner.

5. The speech violated a specific provision of Departmental policy.

This General Order supersedes all prior directives and orders inconsistent therewith.

BY ORDER OF:

Signature on File
Beth M. Andreski
Chief of Police
Effective Date: 6/30/2009
Revised: 6/20/2016
Revised: 2/22/2018
Revised: 7/24/2020
Revised: 11/3/2023
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